

Criminal Law, Investigation and Procedure Victoria

Trial Procedure

Evidence

Evidence Act 2008 (Annotated)

Chapter 2 – Adducing Evidence (ss 12–54)

Part 2.1 – Witnesses (ss 12–46)

Division 4 – Examination in chief and re-examination (ss 37–39)

Unfavourable witnesses

Last Review: 29/05/2024

38 Unfavourable witnesses

Legislation

- (1) A party who called a witness may, with the leave of the court, question the witness, as though the party were cross-examining the witness, about—
 - (a) evidence given by the witness that is unfavourable to the party; or
 - (b) a matter of which the witness may reasonably be supposed to have knowledge and about which it appears to the court the witness is not, in examination in chief, making a genuine attempt to give evidence; or
 - (c) whether the witness has, at any time, made a prior inconsistent statement.
- (2) Questioning a witness under this section is taken to be cross-examination for the purposes of this Act (other than section 39).
- (3) The party questioning the witness under this section may, with the leave of the court, question the witness about matters relevant only to the witness's credibility.

Note: The rules about admissibility of evidence relevant only to credibility are set out in Part 3.7.

- (4) Questioning under this section is to take place before the other parties cross-examine the witness, unless the court otherwise directs.
- (5) If the court so directs, the order in which the parties question the witness is to be as the court directs.
- (6) Without limiting the matters that the court may take into account in determining whether to give leave or a direction under this section, it is to take into account—

- (a) whether the party gave notice at the earliest opportunity of the party's intention to seek leave; and

Note: Paragraph (a) differs from the *Commonwealth Act* and *New South Wales Act*.

- (b) the matters on which, and the extent to which, the witness has been, or is likely to be, questioned by another party.

- (7) A party is subject to the same liability to be cross-examined under this section as any other witness if—
 - (a) a proceeding is being conducted in the name of the party by or on behalf of an insurer or other person; and
 - (b) the party is a witness in the proceeding.

View [s 38 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

SECTION 38 COMMENTARY

[EA.38.20] Unfavourable witnesses

One of the key differences between the common law and the Act is the greater latitude that is now given to parties to cross-examine their own witness. Pursuant to [s 38 of the Evidence Act 2008](#) this is now permissible where the witness is “unfavourable” (as opposed to being “hostile” as was the case at common law).

The term “unfavourable” has been interpreted broadly. In *Director of Public Prosecutions (Cth) v Nair* (2009) 236 FLR 239; 170 ACTR 15; [2009] ACTCA 17, it was held that in order for a witness to be unfavourable, there is no need for evidence to be given of a motive or reason for the witness to give untruthful evidence. In *R v Lozano* (unreported, NSWCCA, 60487 of 1996, 10 June 1997), it was held that where a witness unconvincingly states that he or she cannot recall a relevant event, this alone can be a basis for a finding that the witness is unfavourable.

In *Hadgkiss v Construction, Forestry, Mining & Energy Union* (2006) 152 FCR 560; 155 IR 139; [2006] FCA 941 it was held that unfavourable requires more than merely not favourable. The court stated:¹

[F]or evidence to be characterised as “unfavourable” it would have to detract from the case of the party calling the witness. I would prefer the approach taken by Hodgson JA with which Meagher JA agreed, in *Klewer v Walton* [2003] NSWCA 308 at [20] (and [30]) where his

Honour expressed the view that evidence which was simply “neutral” did not come within the word “unfavourable” as used in s 38(1)(a). In *Adam v The Queen* (2001) 207 CLR 96; 75 ALJR 1537; 123 A Crim R 280; 183 ALR 625; [2001] HCA 57 at [27] Gleeson CJ, McHugh, Kirby and Hayne JJ seem to me to be suggesting that for evidence to be characterised as unfavourable, it must have an unhelpful quality about it, as opposed to a neutral quality.

In *Razzak v The Queen* (2008) 191 A Crim R 530; [2008] NSWCCA 304, the court noted that s 38 can be invoked in situations where it is expected that a witness will give unfavourable evidence.² The common law position that it is inappropriate to call a witness known to be hostile for the sole purpose of getting before the jury a prior inconsistent statement made by the witness no longer seems to apply.³

When leave is granted to cross-examine a party's own witness about the issue upon which the unfavourable evidence is given – it is not a licence for general cross-examination. However, as noted in *R v Le* (2002) 54 NSWLR 474; 130 A Crim R 44; [2002] NSWCCA 186 some leeway is permitted:⁴

One purpose of a s 38 examination must be to enable counsel calling the witness to demonstrate that the evidence in chief which led to the s 38 order is false. Another must be to enable counsel to demonstrate that any prior statement inconsistent with it is true. That latter purpose is assisted by s 60, which permits a prior inconsistent statement to be considered as evidence of what is represented, not merely as a matter affecting credibility. But s 60 by itself is not wholly effectual unless the questioner is able to interrogate with a view to demonstrating the truth of the prior inconsistent statement. There would be little point in permitting s 38 examinations otherwise and no point in the existence of s 38(3). The purposes described can be assisted by obtaining concessions from the witness about matters tending to indicate the falsity of the impugned evidence. One of these is the lateness with which the impugned story is advanced. Another is the inherent improbability of the impugned story. These purposes must also be capable of being assisted by the eliciting of evidence tending to show the truthfulness of prior statements inconsistent with the impugned evidence, such as the fact that they were made under conditions conducive to accurate recollection and expression and conducive to sincerity.

In my opinion, on the true construction of s 38, leave may be granted under s 38 to conduct questioning not only if the questioning is specifically directed to one of the three subjects described in s 38(1), but also if it is directed to establishing the probability of the factual state of affairs in relation to those subjects contended for by the party conducting the questioning or the improbability of the witness's evidence on those subjects. In establishing the probability or improbability of one or other state of affairs, the questioner is entitled to

ask questions about matters going only to credibility with a view to shaking the witness's credibility on the s 38(1) subjects.

In *R v SH* (2011) 6 ACTLR 1; 256 FLR 123; [2011] ACTSC 198 the court observed some authorities had noted that the term “unfavourable” may need to be applied more strictly regarding prosecution witnesses:⁵

I acknowledge what Adams J said in *R v Pantoja* (unreported, NSWCCA, Wood CJ, James and Adams JJ, 5 November 1998), in a passage referred to in *Director of Public Prosecutions v Nair* (2009) 236 FLR 239; 170 ATR 15; [2009] ACTCA 17:⁶

It seems to me that some attention will need to be given in due course to the meaning of “unfavourable” so far as the Crown case is concerned. The Crown case is, in essence, the truth, wherever that might lead and even if it leads to a reasonable doubt about guilt. I am far from persuaded that merely because a witness declines to give evidence supporting the theory of the facts for which the prosecution contends or, indeed, gives evidence that contradicts that theory or contention, his or her evidence may thereby be regarded as “unfavourable”. How can truthful evidence ever be “unfavourable” from the Crown’s point of view? In the circumstances of this case, however, there were good reasons for concluding that, if not untruthful (and I do not think that this was ever suggested in the sense of being deliberate) the evidence of the witness as adduced by the cross-examination was doubtful, even if (by parity of reasoning) the evidence adduced in chief by the Crown was also doubtful.

This is an approach somewhat supported by what James J said in *R v Kneebone* (1999) 47 NSWLR 450; [1999] NSWCCA 279 (1999):⁷

Section 38 of the *Evidence Act 1995* (NSW) refers to the concept of the witness being “unfavourable”. In the context of a criminal case, care may have to be given to the question of what “unfavourable” to the Crown means. That concept will not necessarily be satisfied simply because the witness' potential testimony does not accord with some prosecutor’s view of the appropriate “camp” or some case theory which does not accord with all the otherwise reliable evidence.

In *Director of Public Prosecutions (Vic) v Garrett* [2016] VSCA 31,⁸ the court considered at length the meaning of unfavourable and concluded that:⁹

The word “unfavourable” is not defined in the Act. It is an ordinary English word and, on accepted principles of interpretation, should be given its ordinary meaning. Perhaps unsurprisingly, the principal dictionary definition of “unfavourable” is “not favourable”. Other meanings given include “disadvantageous”, “adverse” and “ill-disposed”. In turn, the word “favourable” is defined to mean “affording aid, advantage, or convenience” and “advantageous, convenient; facilitating one's purpose or wishes; helpful, suitable”.

Nothing in the context, either of [s 38](#) or of the Act as a whole, requires any departure from that approach to interpretation. As the High Court said in *Spencer v The Commonwealth*:

The judicial creation of a lexicon of words or phrases intended to capture the operation of a particular statutory phrase ... is to be avoided.

Axiomatically, it is the words of the statute themselves which must govern the interpretation. As the authorities have made clear, “unfavourable” means simply “not favourable”.

This being a uniform provision applying in several jurisdictions, principles of comity mean that the interpretation adopted by other intermediate appellate courts should be applied in Victoria. The predominant line of authority in all relevant jurisdictions dictates that the phrase “unfavourable to the party” must be taken to mean unfavourable to the case which the party is seeking to advance in the proceeding. Whether evidence is unfavourable to the case that the party is seeking to prove will depend upon the circumstances of each case.

For more recent decisions where it was ruled that a witness was unfavourable, see [R v Anyang \[2011\] VSC 31](#); ¹⁰ [NM Rural Enterprises Pty Ltd v Rimanui Farms Ltd \[2011\] NSWSC 203](#). ¹¹

In [ZL v R \[2023\] NSWCCA 279](#), where the main issue on appeal was whether the prosecution should seek leave to cross-examine the complainant where their evidence is contrary to the Crown opening and closing address it was held, at [111]-[112]:

The underlying principles can be shortly stated. The first principle is that witnesses ought generally be afforded an opportunity of responding to an attack on their credit: [MWJ v The Queen \[2005\] HCA 74](#); (2005) 80 ALJR 329 (MWJ) at [39] (Gummow, Kirby and Callinan JJ), which concerned the appellant's counsel's omission to put matters to a complainant. Significant latitude in the application of this principle is, however, given to accused persons, whose instructions may develop within the course of a trial: MWJ at [18] (Gleeson CJ and Heydon J). The second principle is that prosecutors ought generally not impugn the credit of a Crown witness in final address where the witness was not given an opportunity to respond: [Livermore v R \(2006\) 67 NSWLR 659](#); [2006] NSWCCA 334 at [31].

As the authorities considered below illustrate, it does not, however, follow from these principles that prosecutors are obliged to make applications under [s 38 of the Evidence Act](#) which are, in the circumstances of the case, neither necessary nor reasonable, before they are entitled to submit that either part of all of the evidence of a witness ought not be accepted.

For a rare instance where it was held that leave should not have been given pursuant to [s 38](#), see *Murillo v The Queen* [2020] VSCA 68.¹²

See also *Doyle v The Queen* [2014] NSWCCA 4;¹³ *Lane v The Queen* (2013) 241 A Crim R 321; [2013] NSWCCA 317;¹⁴ *Gilham v The Queen* (2012) 224 A Crim R 22; [2012] NSWCCA 131;¹⁵ *Ritchie v The Queen* [2019] VSCA 202;¹⁶ *Tiba v The Queen* [2020] VSCA 204;¹⁷ *Zabakly v The Queen* [2021] NSWCCA 155.¹⁸

In *Meer v The Queen* [2022] VSCA 164,¹⁹ the Court upheld an appeal against a rape conviction in part because the prosecutor sought to discredit a prosecution witness without seeking leave to cross-examine the witness pursuant to [s 38](#).

See also Odgers S, *Uniform Evidence Law* (Thomson Reuters, subscription service) at [\[EA.38.30\]](#) ff.

Footnotes

- 1 *Hadgkiss v Construction, Forestry, Mining & Energy Union* (2006) 152 FCR 560; 155 IR 139; [2006] FCA 941 at [9].
- 2 See also *R v Rapovski (Ruling No 2)* [2015] VSC 355.
- 3 *Adam v The Queen* (2001) 207 CLR 96; 75 ALJR 1537; 123 A Crim R 280; 183 ALR 625; [2001] HCA 57.
- 4 *R v Le* (2002) 54 NSWLR 474; 130 A Crim R 44; [2002] NSWCCA 186 at [66]–[67].
- 5 *R v SH* (2011) 6 ACTLR 1; 256 FLR 123; [2011] ACTSC 198 at [32]–[33].
- 6 *Director of Public Prosecutions v Nair* (2009) 236 FLR 239; 170 ATR 15; [2009] ACTCA 17 at [36].
- 7 *R v Kneebone* (1999) 47 NSWLR 450; [1999] NSWCCA 279 at [54].
- 8 *Director of Public Prosecutions (Vic) v Garrett* [2016] VSCA 31.
- 9 *Director of Public Prosecutions (Vic) v Garrett* [2016] VSCA 31 at [64]–[68].
- 10 *R v Anyang* [2011] VSC 31.

- 11 *NM Rural Enterprises Pty Ltd v Rimanui Farms Ltd* [2011] NSWSC 203.
- 12 *Murillo v The Queen* [2020] VSCA 68.
- 13 *Doyle v The Queen* [2014] NSWCCA 4.
- 14 *Lane v The Queen* (2013) 241 A Crim R 321; [2013] NSWCCA 317.
- 15 *Gilham v The Queen* (2012) 224 A Crim R 22; [2012] NSWCCA 131.
- 16 *Ritchie v The Queen* [2019] VSCA 202.
- 17 *Tiba v The Queen* [2020] VSCA 204 at [82]–[86].
- 18 *Zabakly v The Queen* [2021] NSWCCA 155.
- 19 *Meer v The Queen* [2022] VSCA 164.

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